

Ruling

For the reasons set forth above and in Plaintiffs' moving papers, the requested costs will be awarded.

2. 9:00 AM CASE NUMBER: C24-01788
CASE NAME: HICHAM MESNAOUI VS. LAKERIDGE ATHLETIC CLUB
HEARING ON SUMMARY MOTION JUDGEMENT
FILED BY:

TENTATIVE RULING:

Before the Court is a motion for summary judgment, or in the alternative, for summary adjudication filed by defendants Lakeridge Athletic Club and William Worthington. For the reasons set forth, the Court rules as follows: (a) motion for summary judgment – **denied**; (b) motion for summary adjudication of Issues 1 and 2 – **granted**; and (c) motion for summary adjudication of Issue 3 – **denied**.

Background

Plaintiff Hicham Mesnaoui alleges on July 6, 2023, he was injured by defendant Adam Morgenthaler during a judo class Mesnaoui and Morgenthaler were participating in at the Lakeridge Athletic Club. (Compl. ¶ 6.) He alleges that after Morgenthaler injured him, the instructor defendant William Worthington, erroneously named "Billy Vidal" in the complaint, was a staff member of Lakeridge and caused him more injury. (Compl. ¶ 6.)

Plaintiff sued Lakeridge, Morgenthaler, and Worthington for premises liability, and Lakeridge alone for negligence. Plaintiff subsequently settled with defendant Morgenthaler for \$30,000, and on motion, Morgenthaler obtained a good faith determination regarding that settlement under Code of Civil Procedure section 877.6. Lakeridge and Worthington (for convenience, collectively sometimes referred to as the "Lakeridge Defendants") have filed a motion for summary judgment, or alternatively, summary adjudication. Plaintiff opposes the motion.

Legal Standards for Ruling on Defendants' Motion

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant meets this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue of fact exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

Motions for summary adjudication under Code of Civil Procedure section 437c(f)(1) "are 'procedurally identical' to summary judgment motions." [Citation.] (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) A motion for summary adjudication under Code of Civil Procedure section 437c(f)(1) can only be granted "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1).) (*See also*

Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 251.)

The issues to be considered on a motion for summary judgment or summary adjudication are defined by the pleadings. (*Anderson v. Fitness Internat., Inc.* (2016) 4 Cal.App.5th 867, 876; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161 ["The complaint measures the materiality of the facts tendered in a defendant's challenge to the plaintiff's cause of action."].) The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen, supra*, 159 Cal.App.4th at 1483.)

Analysis

As to defendant Worthington, Plaintiff alleges only premises liability (1st C/A) and alleges that after Morganthaler injured Plaintiff's foot during the judo class, Worthington injured Plaintiff's foot more. (Compl. ¶¶ 6, 7.) Plaintiff makes the same allegation against both Worthington and Lakeridge that they "negligently caused, permitted, constructed, managed and maintained, inspected, supervised, etc., said premises, and failed to act on the knowledge of the confrontation occurring outside their establishment involving their employees and patrons. This knowledge created a reasonably foreseeable risk of the kind of injury that Plaintiff suffered. Defendants had actual and/or constructive notice of the existence of the dangerous circumstances and knew or should have known of the potential for a dangerous outcome." (Compl. ¶ 7 [emphasis added].)

In his second cause of action for negligence, alleged only against Lakeridge, Plaintiff alleges Lakeridge owned or operated the premises located at 6350 San Pablo Dam Road in El Sobrante, presumably where the club is located, and that Lakeridge "negligently monitored, maintained, controlled and/or operated the property at the subject premises, such that it was an unsafe, dangerous and a hazardous condition. [¶] Defendant failed to protect Plaintiff, and moreover caused, permitted a dangerous and hazardous situation to arise when its staff member defendant [Worthington] injured plaintiff further during a routine Judo drill. In fact, on or about July 6, 2023, as a direct result of the Defendants' failure to protect Plaintiff against such foreseeable harm, Plaintiff experienced five different breaks in his foot which required surgeries and pins." (Compl. ¶¶ 10, 11 [emphasis added].)

A. Legal Framework of Plaintiff's Claims

The elements of both negligence and premises liability are "a legal duty of care, breach of that duty, and proximate cause resulting in injury." (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) Generally, the breach and causation elements of the claims are "fact-specific issues for the trier of fact," while "the existence and scope of a duty are questions of law." (*Staats v. Vintner's Golf Club, LLC*

(2018) 25 Cal. App. 5th 826, 832.) (See also *Hernandez v. Jensen* (2021) 61 Cal. App. 5th 1056, 1064.)

1. Premises Liability

"Premises liability . . . '[i]s grounded in the possession of the premises and the attendant right to control and manage the premises[]'; accordingly, '[m]ere possession with its attendant right to control conditions on the premises is a sufficient basis for the imposition of an affirmative duty to act.[]' [Citations, internal quotation marks omitted.]" (*Kesner, supra*, 1 Cal.5th at 1158.) (See also *Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal. App. 3d 1611, 1619 ["The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence. [Citation omitted.]"]; *Jones v. Awad* (2019) 39 Cal. App. 5th 1200, 1207 ["California law requires landowners to maintain land in their possession and control in a reasonably safe condition. [Citation omitted.] Consequently, landowners are liable for injuries caused by a lack of due care in the maintenance of their property. [Citation omitted.]"].)

In the context of a store, the Court in *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200 explained, "Because the owner is not the insurer of the visitor's personal safety [citation omitted], the owner's actual or constructive knowledge of the dangerous condition is a key to establishing its liability. Although the owner's lack of knowledge is not a defense, '[t]o impose liability for injuries suffered by an invitee due to [a] defective condition of the premises, the owner or occupier "must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises. . . ." ' [Citation omitted.] [¶] Courts have also held that where the plaintiff relies on the failure to correct a dangerous condition to prove the owner's negligence, the plaintiff has the burden of showing that the owner had notice of the defect in sufficient time to correct it. [Citation omitted.]" (*Id.* at 1206 [emphasis added].)

2. Assumption of the Risk Doctrine in Relation to Sports

Knight v. Jewett (1992) 3 Cal.4th 296 addressed the primary assumption of the risk doctrine in sports activities, holding that "it is improper to hold a sports participant liable to a coparticipant for ordinary careless conduct committed during the sport." (*Id.* at 318.) *Bushnell v. Japanese-American Religious and Cultural Center* (1996) 43 Cal.App.4th 525 explained that the "full scope of the primary assumption of the risk has yet to be established," but that the doctrine looks at the "nature of the activity, the relationship of the defendant to the activity and the relationship of the defendant to the plaintiff. (*Id.* at 530.)

In evaluating the application of the primary assumption of the risk doctrine, "It must then be determined . . . whether the defendant's conduct at issue is an 'inherent risk' of the activity such that liability does not attach as a matter of law. General rules of liability attach when the defendant's conduct is not an inherent risk of the activity or when the defendant's conduct increased the inherent risks of the activity." (*Id.* at 530.) *Bushnell's* cited examples in the case law regarding the application of the doctrine include, for example, that a ski resort does not have a duty to eliminate moguls on a ski slope, since moguls are part of the challenge of the sport, but it has a duty to ensure its towropes are maintained in a safe working condition, and a baseball player does not have to exercise caution in throwing a bat but the stadium may have a duty to take precautions to protect a spectator from bats

being thrown. (*Id.*) Summarizing prior case law, *Bushnell* explained that "the party who controls the activity (such as the ski resort operator or the owner of a baseball stadium) may have a duty to provide a safe environment such that the activity can be performed without unnecessary risk." (*Id.* at 533 [emphasis added].) *Bushnell* held the primary assumption of the risk doctrine applied to a student and instructor in a judo class. (*Id.*)

3. Exculpatory Clauses and Release and Waiver of Claims

Parties may contract for release or waiver of future negligence liability. (*Benedek v. PLC Santa Monica* (2002) 104 Cal.App.4th 1351, 1356.) Exculpation clauses are enforceable "so long as such contracts do not violate public policy. [Citations omitted.]" (*Anderson, supra*, 4 Cal.App.5th at 877.) (*See also* Civ. Code § 1668.) " 'A valid release precludes liability for risks of injury within the scope of the release.' " (*Anderson, supra*, 4 Cal.App.5th at 877 [quoting *Gebring v. 24 Hour Fitness USA, Inc.* (2015) 234 Cal.App.4th 631, 637.]

The California Supreme Court has held that exculpatory agreements releasing or waiving claims in the context of recreational activities or programs are enforceable to the extent they release liability for future claims for negligence, but not for "gross negligence," which would violate public policy. (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 750-751, 776.) (*See also* *Lund v. Bally's Aerobic Plus, Inc.* (2000) 78 Cal.App.4th 733, 739.) Whether a release bars recovery against a negligent party "turns primarily on contractual interpretation, and it is the intent of the parties as expressed in the agreement that should control." (*Sanchez v. Bally's Total Fitness Corp.* (1998) 68 Cal.App.4th 62, 66.) To be effective, a release must be clear, unambiguous and explicit in expressing the intent of the subscribing parties. (*Id.*)

Nevertheless, "in cases involving a waiver of liability for future negligence, courts have held that conduct that substantially or unreasonably increased the inherent risk of an activity or actively concealed a known risk could amount to gross negligence, which would not be barred by a release agreement." (*Anderson, supra*, 4 Cal.App.5th at 881.)

B. Undisputed Material Facts and Facts Plaintiff Asserts Are Disputed

Defendants' Separate Statement ("SS") of Undisputed Material Facts ("UMFs") list 19 UMFs to support summary judgment and repeat those same 19 facts, renumbered, in support of each of the three issues for which they alternatively move for summary adjudication. (*See* Defs. SS Issue 1 [1st C/A against Worthington, UMF Nos. 20-38 corresponding to UMF 1-19], Issue 2 [1st C/A against Lakeridge, UMF Nos. 39-57 corresponding to UMF Nos. 1-19], and Issue 3 [2nd C/A against Lakeridge, UMF Nos. 58-77 corresponding to UMF Nos. 1-19].) Plaintiff filed a Response to the SS which responds to Defendants' UMFs. Plaintiff has not offered any additional material facts in his Response to the SS. The Court refers to UMF Nos. 1-19, but the Court's comments on the disputed and undisputed facts apply with equal force to the corresponding UMFs related to Issues 1-3 in support of the alternative motion for summary adjudication.

Plaintiff lists eight of the UMFs as unequivocally "undisputed." (Resp. to UMF 2, 3, 6, 8, 10, 11, 16, 17.) There is no dispute Plaintiff participated in a judo class at the Lakeridge Athletic Club on the date of the incident (July 6, 2023), that there were three judo instructors, including Worthington, present at the class and approximately 6 to 7 students, and that this was Plaintiff's first judo class and the class was considered a beginner level class. (UMF 2, 3, 6.) Plaintiff does not dispute that during class, the

instructors explain the drill, demonstrate, and then coach the participants, that in the exercise in which he was injured, the participants were practicing a technique for grabbing an opponent's shoulder, and that 15 seconds into the exercise Plaintiff stated he thought he broke his foot. (UMF 8, 10, 11.) Plaintiff sought medical care for his injury the next day, and he alleges claims for premises liability against Worthington and Lakeridge and negligence against Lakeridge. (UMF 16, 17.)

Plaintiff identifies other UMFs as undisputed but then attempts to qualify his admission or partially dispute the fact. In Response to UMF 1, Plaintiff admits he signed the club membership agreement with Lakeridge. The UMF indicates, with supporting evidence, that the membership agreement includes a Waiver of Claims provision. Plaintiff contends UMF 1 is partially disputed because he asserts he did not sign a separate agreement related to the judo class or he did not read or understand the Release and Waiver release provision, none of which genuinely disputes the fact stated in UMF 1. The Court will consider Plaintiff's additional facts and evidence in assessing whether those additional facts raise a triable issue of material fact. (Cal. R. Ct., Rule 3.1350(f)(3).)

Similarly, UMF 5 lists Worthington's judo credentials, which Plaintiff explicitly does not dispute. In response to UMF 5, Plaintiff "disputes" that Worthington has any medical training, but UMF does not address Worthington's medical training or lack of medical training or qualification in medicine or fractures. Plaintiff does not genuinely dispute the fact stated in UMF 5, but Plaintiff has raised additional facts supported by cited evidence the Court will consider as additional facts Plaintiff contends are material and raise a triable issue. (*Id.*)

UMF 7 states Plaintiff has a black belt in a different Japanese martial art (Aikado), which Plaintiff does not dispute. Plaintiff adds facts or argument regarding the Aikado being a "different discipline," but the fact is unsupported by citation to any evidence as required. (Code Civ. Proc. § 437c(b)(3) [regarding the opposition separate statement, "Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion."]; Cal. R. Ct., Rule 3.1350(f)(2) ["An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted. Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers."], and Cal. R. Ct., Rule 3.1350(f)(3) [regarding any additional facts the opposing party raises in the separate statement, "Each fact must be followed by the evidence that establishes the fact. Citation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers."].)

UMF 14 states that Plaintiff alleges Worthington applied pressure to the bump on top of Plaintiff's foot causing more injury. Plaintiff does not dispute that he makes this allegation. Plaintiff's Response also includes the additional fact that he has evidence to support that Worthington manipulated his foot. While UMF 14 is not genuinely disputed, the Court will consider Plaintiff's additional fact and evidence in assessing whether Plaintiff raises a triable issue material to the disposition of his claims. (Cal. R. Ct., Rule 3.1350(f)(3).)

Plaintiff admits as undisputed that he did not hear bones cracking when Worthington pushed on his foot in response to UMF 15. Plaintiff adds facts regarding increased swelling and pain after

Worthington's manipulation of the foot as part of the response. The fact stated in UMF 15 is not disputed by those facts or evidence, but the Court will consider Plaintiff's additional facts and evidence in assessing whether those additional facts raise a triable issue of material fact. (*Id.*)

UMF 18 states Worthington "did not own, lease, occupy, or control" the property where the judo class was held, to which Plaintiff only states his lack of ownership is "undisputed." (Resp. to UMF 18.) Plaintiff then makes legal arguments that Lakeridge and Worthington are nevertheless liable for Plaintiff's injury based on Lakeridge's asserted retained control and Worthington's "post-injury conduct . . . create[ing] independent liability grounds not dependent on premises control," without citation to any evidence in support of Plaintiff's dispute. (Resp. to UMF 18 [emphasis added].) (Code Civ. Proc. § 437c(b)(3); Cal. R. Ct., Rule 3.1350(f)(2) and (f)(3).)

UMF 19 states that there were no prior incidents or reported injuries from the judo classes at Lakeridge. The response to this UMF does not respond to the fact stated but merely repeats Plaintiff's response to UMF 18. (*See also* Resp. to UMF 38, 57, 77.) The Court deems this UMF undisputed as a result. (Code Civ. Proc. § 437c(b)(3); Cal. R. Ct., Rule 3.1350(f)(2) and (f)(3).)

Plaintiff disputes UMF 4 that Worthington was an independent contractor of Lakeridge. To support the dispute, Plaintiff cites: (1) a statement from Morgenthaler's declaration that Worthington was the instructor for the class; (2) a statement by Worthington in his declaration filed in support of the motion that Worthington's co-instructor "Lance" "arranged" to have the judo classes at Lakeridge, a statement that is preceded by the first sentence of the paragraph that Worthington is an instructor at Lakeridge as a "1099 independent contractor." (Worthington Decl. ¶ 4, cited in part at Resp. to UMF 4.) For the reasons explained further below, Plaintiff's evidence does not raise a genuine dispute of material fact regarding Worthington's status as an independent contractor.

UMF 9 states Plaintiff "alleges" his foot was injured during an exercise with Morgenthaler, a co-participant, which Plaintiff concedes is undisputed. In response, Plaintiff asserts that his foot was also injured by Worthington's subsequent manipulation of or pressing on his foot. Plaintiff cannot rely on his own interrogatory response as evidence to raise a triable issue on a summary judgment motion. (Code Civ. Proc. § 20230.410 ["At the trial or any other hearing in the action, so far as admissible under the rules of evidence, the propounding party or any party other than the responding party may use any answer or part of an answer to an interrogatory only against the responding party." (Emphasis added.); *Bayramoglu v. Nationstar Mortgage LLC* (2020) 51 Cal.App.5th 726, 740; *Great American Insurance Companies v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 450.) Plaintiff cites other evidence to support that he contends his injury was not caused "solely" by his grappling with Morgenthaler, consistent with his allegations in the complaint. (Compl. ¶¶ 6, 7.) The Court will consider Plaintiff's additional fact and evidence in assessing whether Plaintiff raises a triable issue material to the disposition of his claims. (Cal. R. Ct., Rule 3.1350(f)(3).)

UMF 12 states that the protrusion in Plaintiff's foot went down when he moved toward the couch. Though Plaintiff lists the fact stated as "disputed," his Response to UMF 12 in fact admits the specific fact stated in the UMF: "Plaintiff testified the protrusion went down when he moved to the couch." (Resp. to UMF 12; Pl. Exh. B [Mesnaoui DT 39:9-17].) The fact that Worthington manipulated the foot after that and that the manipulation (to which Plaintiff testified he consented) may have compressed his foot after Plaintiff had reached the couch are additional facts that do not dispute the fact stated in

UMF 12, but the Court will consider whether the additional facts are material and raise a triable issue. (Cal. R. Ct., Rule 3.1350(f)(3).)

UMF 13 states there was a "small" bump on the top of Plaintiff's foot. Plaintiff lists this UMF as disputed based on the use of the word "small" in the UMF. (Resp. to UMF 13.) The characterization of the bump as "small" or not is not a material dispute regarding the material fact that there was a bump or protrusion on the top of Plaintiff's foot which is conceded by the evidence cited in support of Plaintiff's Response. The Mesnaoui DT cited in the Response to UMF 13 does not describe the size of the bump. The Adam Morganthaler "Statement" not under oath estimates the bump at 1/2 to 3/4 of a centimeter, but at his deposition, he testified it was 1/2 centimeter, as indicated in the portions of those documents cited in the Response to UMF 13. The Quinn Morganthaler "Statement" not under oath does not estimate a size and only refers to the bump as "a sharp height on top of his foot," which was not protruding up when Mesnaoui was on the couch. (Resp. to UMF 13 [citing Pl. Exh. F].) There is no material dispute as to this fact either.

C. Lack of Causation Not Presented to Allow Summary Judgment/Summary Adjudication on That Ground

Notably absent from the UMFs in support of the motion is any UMF that states that Worthington did not injure Plaintiff's foot or injure Plaintiff's foot more after the initial injury from his grappling with Morganthaler, or that nothing Worthington did caused injury to Plaintiff's foot or exacerbated Plaintiff's foot injury. There is no UMF addressing lack of causation of any injury to Plaintiff by Worthington's acts. UMFs 9 (allegation Plaintiff was injured during an exercise), 12 (moving to the couch, protrusion went down), 13 (visible bump), 14 (Worthington put pressure on the foot), and 15 (no audible bones cracking) do not address whether Worthington's putting pressure on Plaintiff's foot, or any other action taken by Worthington, injuring Plaintiff's foot more as alleged in paragraphs 6 and 7 of the complaint. None of these UMFs, or any other UMF, asserts that nothing Worthington did injured Plaintiff. The absence of such a fact from the UMFs means Defendants have not set forth in their SS the facts to negate causation as one of the essential elements of Plaintiff's claims; namely, that Worthington did not make Plaintiff's foot injury worse. (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337 [stating the "golden rule" of summary judgment and summary adjudication that "if it is not in the separate statement, it does not exist."].)

Even if the Lakeridge Defendants had properly raised lack of causation in their SS, the expert medical opinions on which they rely are largely inadmissible. The Court sustains certain of Plaintiff's evidentiary objections to the Donatto Declaration as set forth below.

D. Defendants Met Their Initial Burden on the Motion

Defendants' UMFs support that Plaintiff's claim of injury as it pertains to the Lakeridge Defendants is for Worthington's post-grappling injury compression or manipulation of Plaintiff's injured foot. Defendants' UMFs also include that Worthington is a 1099 independent contractor conducting a class at the club, that he has no ownership or control over the premises of the club, and that Lakeridge had no notice of any complaints or incidents involving the judo class or Worthington prior to Plaintiff's incident. To the extent Plaintiff's complaint generally alleges negligent supervision, training, or hiring (Compl. ¶ 3), Plaintiff alleges his injury was the result of the "negligence" of the Defendants and alleges no facts sufficient to state that either of the Lakeridge Defendants were grossly negligent

(Compl. ¶¶ 6-8, 10-12). In addition, the Lakeridge Defendants point to the Release and Waiver, Kadlic Exh. A (the "Release and Waiver" for convenience) releasing the Lakeridge Defendants from liability for negligence. They also present a UMF and evidence that Worthington was an independent contractor. This is enough to shift the burden to Plaintiff on both causes of action with regard to defenses to Plaintiff's claims, but not as to lack of causation for the reasons stated above.

E. Direct Liability of Worthington for Premises Liability (Issue 1)

Plaintiff's allegations regarding the negligent injury caused by Worthington are unrelated to any condition of the judo studio or the use of the facilities, but are related instead to Worthington allegedly negligently manipulating Plaintiff's foot after Plaintiff injured it during an exercise in the judo class. Plaintiff makes no argument in his opposition that Worthington is liable for premises liability based on the undisputed facts. (Opp. p. 18, Section E [arguing only that Lakeridge may be liable for "negligent activities and supervision occurring on the premises"].) (*Kesner, supra*, 1 Cal.5th at 1158; *Brooks, supra*, 215 Cal. App. 3d at 1619; *Jones, supra*, 39 Cal. App. 5th at 1207 [all tying premises liability to negligence in condition of premises].)

The fundamental premise of this case is that Worthington acted improperly as a judo instructor in allegedly further injuring Plaintiff's already injured foot that was hurt while grappling in the judo class, an activity that is allegedly outside the ordinary activities of a judo instructor. Even if Worthington—as an instructor in the class—was in control of the premises where the class was held during the time in which the class was conducted, Plaintiff cites no authority that negligence or even gross negligence by the class instructor would provide a basis for holding the instructor liable for premises liability, as opposed to general negligence. Plaintiff also cites no facts that show Worthington breached a duty of care in exercising control over the premises. (*Kesner, supra*, 1 Cal.5th at 1158; *Brooks, supra*, 215 Cal. App. 3d at 1619; *Jones, supra*, 39 Cal. App. 5th at 1207 [all tying premises liability to negligence in condition of premises].) Nothing about the instructor's decision allegedly to administer first aid on Plaintiff's foot after he was injured in the judo class was connected to negligence in his control of the premises.

F. Direct and Indirect Liability of Lakeridge for Premises Liability (Issue 2)

Having concluded that Worthington is not liable for premises liability on the first cause of action, there is no basis to hold Lakeridge indirectly liable. (See, e.g., *Rostai v. Neste Enterprises* (2006) 138 Cal.App.4th 326, 336-337 [having found the personal trainer did not breach a duty of care to the plaintiff in training him at a workout where he had a heart attack, there was no basis to impose vicarious liability on the gym].)

G. Analysis of the Release and Waiver Scope and Coverage

Plaintiff admits he executed the Release and Waiver. The membership agreement is a month-to-month membership that automatically renews each month unless terminated. Plaintiff's additional fact that it was signed 13 months before he did the judo class does not negate that the Release and Waiver were in effect when he participated in the class. Plaintiff argues the judo class "required separate enrollment and fees distinct from the general gym membership," citing Plaintiff's Exhibit A, the Morganthaler DT at page 15:1-4 (Opp. p. 6, ll. 15-17), but that citation does not appear in his Response to the SS and is not highlighted in Exhibit A, nor does Plaintiff cite any authority to support that a separate fee or registration for a class on the Lakeridge club premises means that the Lakeridge

Release and Waiver does not apply. The other evidence offered by Plaintiff in response to UMF 1 similarly does not support that, given the class was being taught at the Lakeridge club, the Lakeridge release did not apply to the judo class. The language of the documents is to the contrary.

Contract principles govern the interpretation of the Release and Waiver, and the issue is one of law. (*Brown v. El Dorado Union School Dist.* (2022) 76 Cal.App.5th 1003, 1023.) The membership agreement in this case states, among other things, that "Member is fully aware of the potential dangers incidental to engaging in the activity and instruction of exercise activities (such as weight lifting, body building, aerobic dancing, and any other exercise activity). In consideration of permitting the member to join this Club or to participate in exercise activity and/or instruction at these premises, the Member agrees to voluntarily assume all liability . . . for any . . . injury . . . suffered by . . . Member arising out of the Member's activities" at Lakeridge." (UMF 1; Kadlic Decl. Exh. A [emphasis added].) The waiver of claims attached to the membership agreement states that Plaintiff's "access to the premises and property and use of the facilities . . . owned or operated" by Lakeridge "involves a risk of injury to you . . . whether causes by the actions or passive or active negligence of you, someone else, or employees of Lakeridge. As such, you . . . understand and voluntarily accept and assume this risk and agree that Lakeridge [and] its employees . . . will not be held liable for any injury, . . . monetary or financial loss, . . . occurring at the premises or while using the facilities . . . owned or operated by Lakeridge, or while participating in activities or classes, . . . or receiving training or instruction, or participating in any way in any activity or event at Lakeridge, or resulting from or in any way arising out of the negligence . . . of anyone on Lakeridge's behalf, or anyone at the premises or using the facilities owned or operated by Lakeridge." (UMF 1, Kadlic Exh. A [emphasis added].) The waiver of claims continues, stating the waiver "includes, without limitation, injuries which may occur as a result of your . . . use of any . . . facilities, . . . the Club's improper maintenance of any . . . facilities, . . . the Club's negligent instruction or supervision, . . . including the Club's active or passive negligent inspection or maintenance of the facility." (UMF 1, Kadlic Decl Exh. A [emphasis added].)

1. Application to Judo Class

Plaintiff argues, without citation to supporting authority, that whether the waiver and release here "encompasses a specialized activity" is a "triable issue" of contract interpretation. The only opposing evidence remotely addressing this issue is some evidence that there was a separate judo class registration form that was provided to him after he was injured at the end of class. (Resp. to UMF 1 citing Mesnaoui DT 41:14-20, 23-25.) There is no evidence of the content of the registration form, nor does Plaintiff cite any additional facts or legal authority or make any cogent analytical or legal argument to explain why "registration" for the judo class would mean that the general Release and Waiver does not apply or bring the judo class within its scope. (*See also Grebing v. 24 Hour Fitness USA, Inc.* (2015) 234 Cal.App.4th 631, 638 ["[W]hen a release expressly releases a defendant from any liability, it is not necessary that the plaintiff have specific knowledge of the particular risk that ultimately caused the injury."].) Nothing in the fact of registration itself, without more, raises a triable issue as to whether the scope or interpretation of the Lakeridge Release and Waiver forms encompass Plaintiff's participation in the judo class. Plaintiff cites no legal authority to support his implicit legal argument that to be legally effective in this context, a release or waiver must specify the particular activity in which the party was injured. "Contentions are waived when a party fails to support them with reasoned argument and citations to authority. [Citations omitted.]" (*Moulton*

Niguel Water Dist. v. Colombo (2003) 111 Cal. App. 4th 1210, 1215.)

In addition, the decision in *Lund v. Bally's Total Fitness* (2000) 78 Cal.App.4th 733 is to the contrary. *Lund* affirmed a nonsuit in favor of the defendants based on a release and waiver where the plaintiff was injured in using exercise equipment under the supervision of a personal trainer employed by Bally's. (*Id.* at 735, 738.) She had to pay an additional fee for the personal trainer as it was not covered by the regular membership fee. (*Id.* at 737.) The Court rejected the plaintiff's argument that the release and waiver in the membership agreement did not cover services with the personal trainer and that she had to sign a new waiver and release. (*Id.* at 738.) The Release and Waiver clearly refers to exercise activity or instruction, participating in activities or classes, or training, or any activity at the premises, which clearly encompasses the judo class. (*See also Bushnell, supra*, 43 Cal.App.4th 525 [holding primary assumption of the risk doctrine applies to judo instruction].)

As noted by the Lakeridge Defendants, the scope of the release and whether it negates Defendants' duty is an issue of law for the Court. (*See Cohen, supra*, 159 Cal. App. 4th at 1483.) (*See also Sanchez v. Bally's Total Fitness Corp., supra*, 68 Cal. App. 4th at 69 ["Whether a contract provision is clear and unambiguous is a question of law, not fact."].) Plaintiff does not make any analysis of the language of the Release and Waiver to show that there is any ambiguity or "triable" fact issue regarding the interpretation of those documents.

Plaintiff also argues that Lakeridge cannot rely on the Release and Waiver because Plaintiff signed it 13 months before the incident. Plaintiff cites no authority that supports that an exculpatory clause validly executed 13 months prior to an injury is somehow invalid or ineffective, or that the law imposes a timing requirement on when the waiver of claims is executed in relation to participation in the activity that caused the injury. The Court rejects this legally unsupported argument. (*Moulton Niguel Water Dist., supra*, 111 Cal. App. 4th at 1215 [unsupported legal arguments are properly disregarded].)

Plaintiff also argues that he did not read or understand the Release and Waiver before signing it. (Opp. p. 7, ll. 8-10.) He cites no facts or legal authority that someone from Lakeridge was obligated to explain the documents to him in order for them to be effective. Plaintiff asserts but does not provide any support for that even though the case law holds a party is bound to contracts they sign even if they did not read them, courts recognize "questions of unconscionability, fraud in the inducement, and whether a waiver encompasses the specific conduct at issue are factual determinations inappropriate for summary judgment when disputed." (Opp. p. 7, ll. 10-13.) These propositions are unsupported and may be disregarded. (*Moulton Niguel Water Dist., supra*, 111 Cal. App. 4th at 1215.)

2. Application to Direct Claim Against Lakeridge for Premises Liability (Issue 2)

Plaintiff argues in his opposition, without citation to any additional facts supported by evidence in his Response to the SS, that there was negligence by Lakeridge in hiring or retaining Worthington to conduct the judo class. Plaintiff has not cited authority that would make negligent hiring and training a basis for a premises liability claim, but even if it is a valid basis for the claim, negligence by Lakeridge in connection with training, instruction, or use of its facilities is clearly within the scope of the Release and Waiver.

Plaintiff argues Lakeridge owed a nondelegable duty to ensure the judo instructor did not provide "dangerous pseudo-medical treatment to injured patrons" (Opp. p. 17), and premises liability extends

beyond the physical condition of the property "to include negligent activities and supervision occurring on the premises" (Opp. p. 18). He makes arguments regarding Lakeridge's negligent supervision of the premises by its failure to train instructors on emergency protocols, prohibit untrained medical intervention, and ensure adequate emergency response procedures, and by Lakeridge "allow[ing] " Worthington to provide medical treatment. (Opp. p. 18.) The arguments are unsupported by any legal authority. (*Moulton Niguel Water Dist., supra*, 111 Cal. App. 4th at 1215.) Plaintiff's Release and Waiver expressly and validly released Lakeridge from liability for negligence for instruction, training and use of the facilities at the club, of which the judo class was a part, including negligence by Lakeridge, by its employees or by "someone else." (UMF 1 [Kadlic Decl. Exh. A].)

The arguments are also unsupported by any facts or evidence that (a) to make a safe environment for the conduct of a judo class or other exercise class by an independent contractor, Lakeridge as the property owner had to implement such protocols, rather than relying on the fact the judo instructor, as an independent contractor, was credentialed as a certified instructor, (b) that Lakeridge allowed or had any knowledge that Worthington provided or would provide medical treatment for an injury during the judo class, or (c) that Lakeridge had any notice of that possibility through prior complaints or incidents. The fact that Lakeridge received no complaints about the judo class or Worthington prior to the incident is supported by admissible evidence and is undisputed. (UMF 19.)

In addition, the arguments do not address the requirement of the case law cited above for premises liability that the owner have notice of the alleged dangerous condition; it is undisputed that there were no prior complaints or incidents involving the judo class or Worthington. (UMF 19.) (*Ortega, supra*, 26 Cal.4th at 1206.) In sworn Special Interrogatory response, the only evidence Plaintiff could provide regarding notice was when Worthington "observed the Plaintiff's injured right foot, which depicted a bone protrusion under the skin of Plaintiff's right foot, and forcefully applied compressions to Plaintiff's already significantly injured right foot," and that Worthington had notice when Plaintiff's grappling partner went to procure ice for his foot. (UMF 17, citing Pl. Resp. to Spec. Rog. No. 13.) This alleged notice is contemporaneous with the injury, and Plaintiff cites no authority that would make such notice sufficient to impose premises liability on Lakeridge as the owner. (*Ortega, supra*, 26 Cal.4th at 1206.)

H. Application of Release and Waiver to Plaintiff's Direct Claim for Negligence Against Lakeridge (Issue 3)

Regarding any direct negligence by Lakeridge for the general negligence cause of action, Plaintiff relies on these same allegations in his opposition regarding Lakeridge's negligent hiring and retention of Worthington, negligent supervision and negligent training, including failing to train or provide protocols for medical events or intervention. Negligent supervision and training by Lakeridge are expressly covered by the Release and Waiver terms. Plaintiff has not shown any legal basis or raised any factual dispute supported by evidence as to why he is not bound to the Release and Waiver and why his direct negligence claims against Lakeridge are therefore not released and waived based primary assumption of the risk.

I. Indirect Liability of Lakeridge on Negligence Cause of Action for Worthington's Potential Grossly Negligent Conduct as Independent Contractor; Ostensible Agency Evidence and Argument (Issue 3)

Defendants also shifted the burden to Plaintiff to demonstrate a basis for holding Lakeridge liable for any conduct of Worthington after the Lakeridge Defendants presented substantial evidence and legal authority regarding his independent contractor status. Plaintiff asserts that Worthington's conduct could be found to be gross negligence and therefore outside the scope of the Release and Waiver and primary assumption of the risk. In his opposition brief, Plaintiff also argues, without citation to any authority, that (a) vicarious liability applies based on ostensible agency principles (Opp. pp. 11-12), and (b) there are exceptions to the general rule of non-liability of a hirer for negligence by an independent contractor (Opp. p. 11). Plaintiff has not identified what those exceptions to nonliability may be, with citation to legal authority, and which exceptions he contends apply in this case. The Court need not address conclusory and unsupported legal arguments. (*Moulton Niguel Water Dist.*, *supra*, 111 Cal. App. 4th at 1215.)

1. Disputed Facts Regarding Worthington's Gross Negligence

The Lakeridge Defendants submitted evidence in support of their motion that Worthington only examined Plaintiff's foot after the injury. UMF 14 states only that Plaintiff "alleges" Worthington applied pressure to his foot. There is no UMF asserting that Plaintiff consented to Worthington applying pressure or trying to relocate the bone.

Plaintiff has presented additional facts supported by substantial evidence in the Response to the UMF that Worthington put pressure on the top of Plaintiff's foot and attempted to manipulate the foot in some manner to address what Worthington believed was a dislocated bone. (Resp. to UMF 14.) Worthington was a judo instructor conducting drills and exercises in judo with his students. (*See generally* Worthington Decl.) There is no evidence from Worthington's credentials cited in his declaration that he had any medical training, that his certification as a judo instructor would encompass rendering first aid or medical care for injuries suffered during a judo class, or that performing a compression on an injured foot to possibly relocate a bone is part of judo instruction or his judo instructor certification.

Plaintiff argues that Worthington's conduct in manipulating his foot after it was injured was "grossly negligent," outside the scope of regular judo instruction, and therefore conduct not within the scope of the membership agreement release and waiver of claims. He argues engaging in conduct which "substantially or unreasonably increased the inherent risk of an activity" can be gross negligence, citing *Willhide-Michiulis v. Mammoth Mountain Ski Area, LLC* (2018) 25 Cal.App.5th 344, 359. (Opp. p. 10.) He argues that Worthington's actions in allegedly administering the post-injury are "totally outside the range of ordinary activity involved in teaching or coaching a sport" and are therefore not subject to the primary assumption of the risk doctrine, citing *Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990. The Court agrees on the record before it, and at a minimum, there are triable issues of material fact as to whether Worthington's conduct concerning the foot after Plaintiff was injured grappling was gross negligence and/or totally outside the ordinary scope of teaching judo.

The Lakeridge Defendants in their moving papers refer in passing to Plaintiff having consented to Worthington applying pressure to his foot, but they argued based on Worthington's declaration that Worthington merely looked at Plaintiff's injured foot, which was within the ordinary scope of activity involving teaching or coaching a sport. (MPA ISO Mot. p. 12, ll. 9-24; UMF 14.) Plaintiff has presented facts supported by evidence from Mesnaoui's and Morgenthaler's DTs that Worthington put pressure

on the top of the foot or compressed the foot, not that he just examined it. (Resp. to UMF 14.) The Lakeridge Defendants' assumption of the risk arguments were focused on the Release and Waiver and primary assumption of the risk doctrine, not on assumption of the risk based on Plaintiff's verbal consent to Worthington compressing the foot. They argued that if Worthington is proven to have engaged in that conduct, his intention was to help and not harm, therefore taking the conduct out of gross negligence. (MPA ISO Mot. p. 11, ll. 2-7.)

It is undisputed that shortly after the grappling exercise began, "Plaintiff immediately stated that he thought he broke his foot." (UMF 11.) There is a triable issue of fact as to what Worthington did to the foot after it was injured, which also raises a triable issue as to whether what he did it increased the risks to Plaintiff beyond the ordinary risks of judo and whether the conduct, if proven, was outside the ordinary activities of a coach or instructor. (*See Wattenbarger v. Cincinnati Reds, Inc.* (1994) 28 Cal. App. 4th 746, 756 [reversing summary judgment for defendants finding triable issues of fact in dispute as to whether team coaches were advised by playing trying out for baseball team that plaintiff, a pitcher, had "popped" his arm, and after consulting with the coaches, player was "encouraged or permitted him to throw a fourth pitch, and whether this final pitch caused injury"]; *Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1006, 1011["a sports instructor or coach owes a duty of due care not to increase the risk of harm inherent in learning an active sport" and for liability, proof "instructor's conduct was 'totally outside the range of the ordinary activity' [citation omitted] involved in teaching or coaching the sport"].)

Gross negligence " 'falls short of a reckless disregard for consequences, and differs from ordinary negligence only in degree, and not in kind' [Citations, internal quotation marks omitted.] 'Generally it is a triable issue of fact whether there has been such a lack of care as to constitute gross negligence [citations omitted.]" [Citation omitted.]" (*Brown, supra*, 76 Cal.App.5th at 1028 [emphasis added].)

The Lakeridge Defendants point to cases in which a student was injured performing a sports activity or exercises at the urging of a coach that may have been beyond the student's physical capabilities. (*See, e.g., Rostai v. Neste Enterprises* (2006) 138 Cal.App.4th 326, 328-329, 334; *Bushnell, supra*, 43 Cal.App.4th at 534.) Unlike *Rostai*, this is not a case involving a coach or trainer pushing an individual to do more difficult or complicated activities within the scope of the exercise. (*Rostai, supra*, 138 Cal.App.4th at 334.) Instead, this case involves an allegation of actions by the instructor far beyond the scope of the activity. (*But see Kahn, supra*, 31 Cal.4th at 1011-1013, 1018 [reversing decision finding summary judgment for defendants appropriate, finding a disputed issue of fact as to coach's conduct being reckless as "totally outside the range of ordinary activity involved in teaching or coaching the sport of competitive swimming"].) To the extent the Lakeridge Defendants contend that Worthington's conduct is either within the ordinary scope of judo instruction activities or did not exacerbate the injury or increase the risk of harm to Plaintiff from the injury, the Lakeridge Defendants have not met their burden to demonstrate those facts and to show that no triable issues exist on those subjects. They did not present evidence that such conduct is within the customary role of a coach in judo instruction, or that it is within the proper instructor conduct specified by USA Judo, or based on admissible evidence, that Worthington's conduct if he did compress the foot did not increase any risk of injury to Plaintiff or did not further injure the foot. Triable issues of fact as to Worthington's potential gross negligence under the standards set forth above make the Release and

Waiver ineffective to bar a claim for gross negligence and potentially take Worthington's conduct outside the primary assumption of the risk doctrine.

2. Ostensible Agency

The moving parties directly addressed the specific allegation that Worthington was a "staff member" of Lakeridge (Compl. ¶ 11) in UMF 4 with supporting evidence. In his Response to UMF 4, Plaintiff asserts that Lakeridge "held Worthington out as its instructor" and "exercised control over curriculum, class schedule, and use of its premises." (Resp. to UMF 4.) To support these facts, Plaintiff cites a statement from paragraph 5 of the Worthington declaration that Lance and Worthington create the judo class curriculum "in accordance with USA Judo," which Plaintiff contends shows Lakeridge "controlled the curriculum standards." (Resp. to UMF 4.) The declaration, however, explicitly states Lance and Worthington created the curriculum according to the USA Judo standards, not Lakeridge. Plaintiff also contends in the Response to UMF 4 that the fact that Lance "arranged" to have the class at Lakeridge means Lakeridge "controlled which contractors could teach." Plaintiff does not cite any legal authority in his opposition showing how that fact demonstrates that Worthington is not an independent contractor.

Nevertheless, Plaintiff raises the doctrine of ostensible agency in his opposition to the motion, citing a decision involving a physician at a hospital: *Mejia v. Community Hospital of San Bernardino* (2002) 99 Cal. App. 4th 1448. *Mejia* explained the doctrine as follows: "Although the cases discussing ostensible agency use various linguistic formulations to describe the elements of the doctrine, in essence, they require the same two elements: (1) conduct by the hospital that would cause a reasonable person to believe that the physician was an agent of the hospital, and (2) reliance on that apparent agency relationship by the plaintiff. [Citations omitted.]" (*Id.* at 1453 [emphasis added].) (*See also* Civ. Code § 2334 ["A principal is bound by acts of his agent, under a merely ostensible authority, to those persons only who have in good faith, and without want of ordinary care, incurred a liability or parted with value, upon the faith thereof."].) In that case, the physicians were independent contractors, not employees of the hospital. *Mejia* held that the fact of a patient merely entering a hospital emergency room for treatment by a physician is sufficient to raise a triable issue as to the physician's being an ostensible agent of the hospital which has to be determined by the jury. The Court reversed the nonsuit for the hospital, even though the negligent physician was a radiologist who never saw the plaintiff. (*Id.* at p. 1460.)

There is no dispute that the judo class was held at the Lakeridge facility, such that Lakeridge implicitly or expressly authorized the use of its facility. Worthington was admittedly the instructor for the judo class being held at the club. Plaintiff has alleged that Worthington was a staff member of Lakeridge in his complaint, and liberally construing the evidence in favor of the opposing party, there is a reasonable inference that Plaintiff relied on the assumption Worthington as the judo instructor for a class held at Lakeridge was an agent or employee of Lakeridge.

Under *Mejia*, and without any evidence offered by the Lakeridge Defendants that they informed judo class participants, including Plaintiff, that the judo instructors were not Lakeridge's employees or agents, this evidence is sufficient to at least raise a triable issue of fact on ostensible agency. The Lakeridge Defendants offered no evidence that would support that Plaintiff had any information that would make his reliance on or assumption Worthington was an agent or employee unreasonable.

There is no evidence in the record to support that Plaintiff was negligent in not discovering that the judo instructors were independent contractors before taking the class.

Defendants do not address *Mejia* and the ostensible agency doctrine in their reply. Plaintiff's Response to UMF raises triable issues of fact on ostensible agency, and its opposition includes law that may support that Worthington was the ostensible agent of Lakeridge and that Lakeridge may have liability for Worthington's acts under that doctrine.

On the current record, the Lakeridge Defendants have failed to demonstrate that there is no triable issue as to (a) whether Worthington's conduct alleged by Plaintiff, with supporting evidence in opposition to the motion, qualifies as gross negligence not exculpated by the Release and Waiver and outside the scope of ordinary activities involved in teaching or coaching judo and risks inherent in judo; and (b) that Lakeridge is not liable for Worthington's conduct under the ostensible agency doctrine.

Final Summary and Conclusion

For the reasons set forth above, the Court concludes there are no triable issues of material fact and that Worthington is entitled to summary adjudication of the premises liability cause of action against him as a matter of law (Issue 1). The Court **grants** the motion for summary adjudication of **Issue 1**.

The Court concludes there are no triable issues of material fact and that Lakeridge is entitled to summary adjudication of the premises liability cause of action against it as a matter of law. (Issue 2.) The Court **grants** the motion for summary adjudication of **Issue 2**.

The Court concludes there are triable issues of material fact that preclude the Court from granting summary adjudication of the negligence cause of action against Lakeridge. There are triable issues as to whether, notwithstanding Worthington's status as an independent contractor, Lakeridge could be liable for his tortious acts under the ostensible agency doctrine, and the disputed facts are ones which, if found in Plaintiff's favor, may constitute gross negligence and conduct "totally outside the range of ordinary activity involved in teaching or coaching a sport." (*Kahn, supra*, 31 Cal.4th at 1011-1013, 1018.) The Court therefore **denies** the motion for summary adjudication of **Issue 3**, and therefore also **denies** the motion for summary judgment.

Evidentiary Objections

The Court rules only on those evidentiary objections that are material to the determination of the motion. (Code Civ. Proc. § 437c(q).)

A. Plaintiff's Objections

1. Cary Declaration

Obj. No. 1 (¶¶ 2-9) – **Overruled**. (Evid. Code §§ 700, 702, 1400, 1410, 1414; foundation laid in part by Cary Decl. ¶ 1 that he is an attorney for defendants; *Ambriz v. Kelegian* (2007) 146 Cal.App.4th 1519, 1527 [finding, among other things, deposition excerpts were authenticated when opposing party submitted excerpts from the same depositions]; *Hooked Media Group v. Apple, Inc.* (2020) 55 Cal.App.5th 323, 337-338, rev. den. by *Hooked Media Group v. Apple Inc.* (Dec. 30, 2020) 2020 Cal. LEXIS 8983 ["As with any other fact, the authenticity of a document can be established by

circumstantial evidence. [Citation omitted.] Apple's documents were authenticated both by the attorney's statement that they had been produced in discovery and by their form, which indicates authenticity."].)

2. Kadlic Declaration

Obj. Nos. 1, 2 (§§ 9, 10) – **Overruled.** (Evid. Code §§ 700, 702.)

3. Worthington Declaration

Obj. No. 1 (§ 7) – **Overruled.** (Evid. Code §§ 700, 702; foundation laid in part by Worthington Decl. §§ 3, 4.)

Obj. No. 2 (§ 8) – **Sustained in part** as to "and it did not appear to be broken." Otherwise, **overruled.**

4. Donatto Declaration

Obj. Nos. 4, 5 and 6 (as to first sentence of paragraph 10 only) – **Sustained.** (*Fernandez v. Alexander* (2019) 31 Cal.App.5th 770, 781-782; *Sanchez v. Kern Emergency Medical Transportation Corp.* (2017) 8 Cal.App.5th 146, 155-156.) Among other things, to be admitted, the medical expert opinion cannot be conclusory, must contain a "reasoned explanation" for the opinions expressed, and with respect to a causation opinion, must be sufficient to convince a trier of fact "that it is more probable than not the negligent act was a cause-in-fact of the plaintiff's injury," or in this case, not the cause in fact of Plaintiff's injury or of making Plaintiff's injury worse. (*Sanchez v. Kern Emergency Medical Transportation Corp.*, *supra*, 8 Cal.App.5th at 160; *Fernandez v. Alexander*, *supra*, 31 Cal.App.5th at 781-782 (expert declaration was conclusory, not supported by a reasoned explanation, and his conclusion on causation, though stated to a "reasonable degree of medical probability," failed to connect the factual predicates to the conclusion, making the declaration inadmissible on summary judgment].) Dr. Donatto describes Plaintiff's injuries but then states only that "digital pressure to the top of an adult foot would not have caused bone fractures" (a conclusion without a reasoned explanation or supporting medical, anatomical or other facts on which the conclusion is based), and that any attempted reduction "would not have caused further injury than the initial injury itself" (another conclusion without supporting reasoned explanation). (Donatto Decl. § 9.) His conclusion that Plaintiff's injuries "are a direct result of the force sustained during the Judo exercise" is unsupported and inadmissible for the same reasons.

B. Defendants' Objections

Obj. Nos. 3, 7, 8 – **Overruled.** Witnesses testifying to their observations of events; admission of party opponent exception to hearsay rule. (Evid. Code § 1220.)

3. 9:00 AM CASE NUMBER: C24-03466

CASE NAME: MASON BONDI VS. TRENT LOCKETT

HEARING IN RE: APPLICATION AND HEARING FOR RIGHT ATTACH ORDER AND ISSUANCE FILED BY BONDI, MASON

FILED BY:

TENTATIVE RULING:

Before the Court are three applications for right to attach orders and writs of attachment filed by